

		Based on the foregoing, the motion is DENIED. Counsel for Respondent is ordered to give notice of this ruling.
14.	<i>Claim of Macedo</i> 2025-01533149-	Before the court is a motion for default and default judgment of forfeiture of \$98,171 in U.S. Currency filed by petitioner The People of the State of California (Petitioner). As more fully set forth below, the Motion is GRANTED. On or about August 30, 2025, \$98,171 in United States currency was seized pursuant to Health and Safety Code section 11470, subdivision (f), for forfeiture for violation of Health and Safety Code sections 11351 and 11378. The petition in this case was brought pursuant to Health and Safety Code section 11470, et. seq. and was timely filed within one year of seizure. (Health & Safety Code, § 11488.4(a).) Health and Safety Code section 11488.5, subdivision (a), grants any claimant to the property subject to forfeiture 30 days from the last publication of notice of the forfeiture proceedings or 30 days after receipt of actual notice to file a verified claim for the property. Section 11488.5, subdivision (b)(1), provides, "If at the end of the time set forth in subdivision (a) there is no claim on file, the court, upon motion, shall declare the property seized or subject to forfeiture pursuant to subdivisions (a) to (g), inclusive, of Section 11470 forfeited to the state. In moving for a default judgment pursuant to this subdivision, the state or local governmental entity shall be required to establish a prima facie case in support of its petition for forfeiture. There is no requirement for forfeiture thereof that a criminal conviction be obtained in an underlying or related criminal offense." "Health and Safety Code section 11488.4 provides for three types of notice of forfeiture proceedings. [Citation.] First, a person from whom property is seized and who is named in a receipt for the seized property is entitled to service of process of the petition of forfeiture. (Health & Saf. Code, § 11488.4, subd. (c).) Second, notice of the seizure or of an intended forfeiture proceeding along with instructions for filing a claim is 'to be served by personal delivery or by registered mail upon any person who has an interest in the seized property or property subject to forfeiture other than persons designated in a receipt issued for the property seized.' (<i>Id.</i>, § 11488.4, subd. (c).) Finally, notice of a forfeiture action must be published once a week for three consecutive weeks in a newspaper of general circulation in the county of seizure. (<i>Id.</i>, § 11488.4, subd. (e).)"

		(<i>People v. Mendocino County Assessor's Parcel No. 056-500-09</i> (1997) 58 Cal.App.4th 120, 125.) Here, Petitioner personally served real-party-in-interest Refugio Macedo (Macedo) with the Petition for Forfeiture of Property, Civil Case Cover Sheet, and a blank Claim Opposing Forfeiture Form (MC 200), as well as the Notice of Seizure and Notice of Initiation of Judicial Forfeiture Proceedings on December 31, 2025. Macedo was the only person whose name appears on the receipt for the seized property, and therefore is the only person entitled to notice under the first or second types of service described in the preceding paragraph. Based on the foregoing, the court finds Petitioner adequately served Macedo. The motion also establishes Petitioner published notice of these proceedings for three consecutive weeks in the Orange County Reporter, thereby satisfying the requirements of Health and Safety Code section 11488.4, subdivision (e). No claim has been filed by any party asserting any interest in the seized property. Accordingly, pursuant to Health and Safety Code section 11488.5, subdivision (b)(1), Petitioner is entitled to a declaration the property is forfeited upon Petitioner making a prima facie showing of its right to the forfeiture. There is no requirement that a criminal conviction be obtained in an underlying or related criminal offense. Based on the uncontroverted declaration of Santa Ana Police Officer N. Valdenor #3849, the court finds Petitioner has established a prima facie case in support of its petition for forfeiture, and therefore Petitioner is entitled to a default judgment of forfeiture. Based on the foregoing, the motion is GRANTED. Petitioner's counsel is ordered to give notice of this ruling.
15.	<i>Baer vs. Tedder</i> <i>2014-00746312</i>	Before the court is the motion of plaintiff Dan W. Baer (Baer) for attorney fees on appeal. As more fully set forth below, the motion is GRANTED, albeit in a reduced amount of fees. This motion has its origins in a discovery motion that was heard and decided by a prior judicial officer in December 2020. In connection with that motion, the judicial officer awarded Baer \$10,475 in monetary discovery sanctions against defendant David H. Tedder (Tedder) and his counsel Robert K. Kent (Kent). Tedder and Kent appealed the decision imposing the sanctions against them.